

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 581

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO THE IDAHO SUPREME COURT; AMENDING SECTION 1-213, IDAHO CODE, TO
AUTHORIZE THE IDAHO LEGISLATURE TO REVIEW COURT RULES IN CERTAIN IN-
STANCES AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY
AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 1-213, Idaho Code, be, and the same is hereby
amended to read as follows:

1-213. DUTY TO MAKE RULES -- LIMITATION. (1) The Supreme Court supreme
court shall prescribe, by general rules, for all the courts of Idaho, the
forms of process, writs, pleadings and motions, the manner of service, time
for appearance, and the practice and procedure in all actions and proceed-
ings. Said rules shall neither abridge, enlarge, nor modify the substantive
rights of any litigant.

(2) The Idaho legislature may review any court rules, including but not
limited to the Idaho rules of family law procedure, the Idaho court adminis-
trative rules, or the Idaho juvenile rules. Upon any finding of conflict be-
tween court rule and Idaho Code, of rules abridging, enlarging, or modifying
substantive rights, the legislature shall advise the supreme court of such
conflict through a house or senate resolution.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.